

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	Economic Stability (ES)
	Part No./Name	B-Eligibility Factors (FITAP)
	Section No./Name	B-1800 Drug Testing (FITAP)
	Document No./Name	B-1870-FITAP Failure to Satisfactorily Participate
	Effective Date	February 1, 2013

I. STATEMENT OF POLICY

Failure or refusal of an applicant or recipient to participate without good cause in the initial drug screening or to sign the release forms is determined by the DCFS worker. Failure to participate with OBH in any subsequent assessment and testing, or failure to participate in the education, treatment, and rehabilitation program is determined by OBH. OBH will notify DCFS if the applicant or recipient failed or refused to participate. OBH and DCFS will work together to encourage participation. DCFS will determine if the applicant or recipient has good cause for not complying.

II. PROCEDURES

Failure to comply with drug testing requirements without good cause will result in the following sanctions:

- At application, the application must be rejected.
- For certified cases in which the family is not work-eligible, the case must be closed and remain closed for at least one month and until the client complies with this requirement, whichever is later.
- For certified cases in which the family is work-eligible, impose a STEP sanction with the appropriate occurrence and reason. The case must remain closed for the duration of the sanction period and until the client complies with this requirement, whichever is later.

If the client appeals and the DCFS Bureau of Appeals rules that the sanction is inappropriate, the sanction is considered as never having been imposed. The sanction must be deleted from LAMI.

B-1871-FITAP - * PR ** SATISFACTORY PARTICIPATION AFTER CLOSURE OR REMOVAL DUE TO FAILURE TO PARTICIPATE

For purposes of recertification, satisfactory participation with:

- DCFS is defined as completing the screening, and, if applicable, signing the release forms and agreeing to keep an appointment with OBH.
- OBH is defined as keeping an appointment with OBH, cooperating during that appointment and agreeing to comply with assessment and treatment recommendations made by OBH.

Once a case has been recertified, satisfactory participation with DCFS and OBH must continue.

III. FORMS AND INSTRUCTIONS

* There are no forms or instructions associated with this policy.

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IV. REFERENCES

[LAC 67:III.1249](#)

[R.S. 46:460.10](#) **